Fort Bend County District Court

Cause No. 2025-CV-0038

Rachel Solis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	4-13-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant, through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

I. General Denial

Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Defendant asserts the defense of proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Plaintiff's own negligence, including failure to keep a proper lookout, failure to control speed, or sudden and unexpected braking without cause, proximately caused or contributed to the collision and any resulting damages, which must be reduced or barred accordingly.

Second, Defendant asserts sole proximate cause and new and independent cause. The collision and Plaintiff's claimed injuries were caused by the acts or omissions of a third party or by an unforeseeable intervening event over which Defendant had no control.

Third, Defendant asserts failure to mitigate damages. Plaintiff failed to exercise reasonable care to minimize his alleged damages, including by delaying or forgoing reasonable medical treatment, and any recovery must be reduced by the amount that reasonable mitigation would have avoided.